

		medical battery cause of action fails as a matter of law under binding California authority. Even if the Court were to consider Mims v. Boland (1964) 110 Ga. App. 477, Defendant’s argument would fail. Mims provides that for withdrawal of consent while treatment is in progress to be effective, “[t]he patient must act or use language which can be subject to no other inference, and which must be unquestioned responses from a clear and rational mind. These actions and utterances of the patient must be such as to leave no room for doubt in the minds of reasonable men that in view of all the circumstances consent was withdrawn.” (Id. at p. 478.) Here, while Plaintiff did not respond to the question of whether she wanted to proceed with the procedure with a clear “no,” which would have shown that she unequivocally withdrew her consent, her response was also not a clear “yes,” which would have shown that she still consented to the procedure. Instead, her response that she was not sure was ambiguous. Whether this constitutes effective withdrawal of her consent is a question of fact not suitable for resolution on demurrer. Thus, the Demurrer is OVERRULED as to the fourth cause of action. Moving party to give notice 2. Case Management Conference
104	Jones vs. PHH Mortgage Inc. 25-01473497	1. Demurrer to Second Amended Complaint 2. Motion to Strike Portions Of Second Amended Complaint Defendants ONITY MORTGAGE CORPORATION f/k/a PHH MORTGAGE CORPORATION (erroneously sued as “PHH Mortgage Inc.”), successor

		by merger to OCWEN LOAN SERVICING, LLC (erroneously sued as separate entities) (hereinafter “PHH”), ONITY GROUP INC. (erroneously sued as “Onity Mortgage Group”) (hereinafter “ONITY”), and GLEN A. MESSINA (erroneously sued as “Glen A. Massina”) (hereinafter “MESSINA”), (collectively “Defendants”), hereby demur to the Second Amended Complaint (“SAC”) filed by Plaintiff DESIREE A. JONES (“Plaintiff”). This Demurrer is made on the grounds that the Complaint fails as a matter of law as it is uncertain, contradictory to prior pleadings and fails to state facts sufficient to constitute any cause of action against Defendants. Code Civ. Proc. §430.10, subd. (e) and (f). DEMURRER AND MOTION TO STRIKE (ROAS 66, 67) ARE CONTINUED TO 09/29/2026 AT 10:00 AM. Defendants filed an objection indicating they did not receive the opposition. Plaintiff to properly reserve the opposition forthwith. Defense counsel and Plaintiff are to properly meet and confer per code, and Defense counsel is to file a declaration setting forth the results 9 court days prior to the continued hearing date. Clerk to give notice.
105	Moslehi vs. County of Orange 24-01428581	Motion to Vacate the Jury Trial Plaintiff Arash Moslehi seeks an order vacating the jury trial and setting the case for bench trial. There is no proof of service accompanying the motion, and none of the remaining defendants has filed a response to the motion. The motion is therefore denied for failure to comply with Code of Civil Procedure section 1005, which requires all moving papers to be served and filed at least 16 court days before the hearing. (CCP §1005(b).) In addition, a proof of service of the moving papers